

5.	22CV1735	BROOK HILTON VS. JACK GLUECK
MOTION TO COMPEL		

The Notice does not comply with Local Rule 7.10.05. Repeated violations will be grounds for sanctions pursuant to Local Rule 7.12.13.

On June 23, 2026, Plaintiff filed a Motion to Compel Responses to Written Discovery from Defendants Barry Hui and Jenny Hui; Request for Monetary Sanctions. Plaintiff indicates that Plaintiff's First Set of Requests for Production of Documents, Special Interrogatories, and Requests for Admission were served by mail on January 8, 2026. Exhibit A. At the time the discovery was served, Plaintiff indicates a medical stay was in effect.

The Court can find no order suggesting a stay was ever ordered. The Court notes the Court entered an Order on November 12, 2025, wherein the Parties stipulated to continue the mandatory settlement conference, trial, and pre-trial deadlines and conferences for 150-180 days due to Plaintiff's health; however, there was no stay of discovery or other proceedings. At the hearing on June 12, 2026, the Court granted Plaintiff's Motion to Lift or Modify Medical Stay to Permit Immediate Discovery to the extent any stay existed.

Plaintiff asserts that she did not seek enforcement of the discovery demand during the alleged medical stay. On June 12, 2026, Plaintiff mailed a meet and confer letter to Defendants advising of her intent to proceed with discovery. Exhibits B and C. On June 21, 2026, Defendant, Barry Hui was personally served with a copy of Plaintiff's First Set Of Requests For Production Of Documents, Special Interrogatories, And Request For Admission To Defendants Barry Hui And Jenny Hui, Letter Dated June 18, 20226 To Barry Hui From Brook D. Hilton; Meet And Confer Letter Re Hui Discovery - June 13, 2026; Proof Of Service By First Class Mail; Notice Of Taking Remote Oral Deposition Of Defendant Jack William Glueck; Notice Of Taking Remote Oral Deposition Of Defendant Barry Hui; Notice Of Taking Remote Oral Deposition Of Defendant Jenny Hui; Motion To Lift Stay - Tentative Rulings. Exhibit D.

Multiple attempts of personal service were made on Defendant, Jenny Hui but were unsuccessful. Exhibit D. To date, Defendants have not served discovery responses, asserted objections, or requested an extension.

Plaintiff further seeks sanctions in the amount of \$1,500 or an amount the Court deems appropriate.

Background

On December 4, 2025, Plaintiff filed an Amendment to Complaint (Filing of True Names of Doe Defendants- CCP § 474) which substituted the true names of DOE 1 and DOE 2 as "Barry Hui" and "Jenny Hui." On December 5, 2025, a Proof of Service was filed indicating Barry Hui and Jenny Hui were served with the Amendment to Complaint, Declaration in Support of

Amendment, and Proposed Order. An Order RE: Amendment to Complaint was entered on December 5, 2025, wherein the Amendment to Complaint was deemed filed as of the date of the order.

There is no Proof of Service of Summons in the Court's file that indicates Defendants Barry Hui and Jenny Hui were ever served with the Complaint and Summons, nor have Defendants Barry Hui and Jenny Hui filed an Answer.

Legal Principles

Code of Civil Procedure § 410.50 provides the Court has jurisdiction over a party from the time summons is served on him. A general appearance by a party is equivalent to personal service of summons on such party.

(I)f an amendment adds a new party defendant, an amended or new summons naming that party as a defendant Must be issued and served upon the new defendant, since no jurisdiction would be obtained by serving Him with a copy of the summons that does not name him. On its face the Comment suggests that service of an amended summons is discretionary in the instance of amended pleadings involving original parties defendant but mandatory in the instance of amended pleadings adding new parties defendant. " *Gillette v. Burbank Community Hosp.* (1976) 56 Cal.App.3d 430, 433.

As Plaintiff has identified new Parties (the true identities of DOES 1 and 2 – Defendants Barry Hui and Jenny Hui), service of the Summons and Complaint are mandatory. On June 25, 2026, Summons were issued in the names of Defendants Barry Hui and Jenny Hui. As the Complaint and Summons have not been served, nor has an Answer been filed, the Court does not have jurisdiction over Defendants Barry Hui and Jenny Hui, which renders Plaintiff's Motion to Compel moot.

TENTATIVE RULING #5:

PLAINTIFF'S MOTION TO COMPEL IS RENDERED MOOT AS THE COURT DOES NOT HAVE JURISDICTION OVER DEFENDANTS BARRY HUI AND JENNY HUI.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO

COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.